

Rais Ahmad v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 March 2014 · WRIT - C No. 14320 of 2014 · **Writ disposed of; petitioner relegated to CGRF under cl. 7.10.**

HEADNOTE

On a challenge to five years' minimum charges under Clauses 4.35, 4.37, 4.38 and 4.39 of the Electricity Supply Code, 2005, the Division Bench declined to entertain the writ, relegating the consumer to the Clause 7.10 grievance forum and thereafter the Ombudsman, and directing that a grievance filed within 15 days be disposed of within six weeks.

FACTUAL SUMMARY

Rais Ahmad challenged before the Allahabad High Court a demand of five years' minimum charges raised by U.P. Power Corporation Ltd. He contended that the Executive Engineer's order levying those charges was contrary to Clauses 4.35, 4.37, 4.38 and 4.39 of the Electricity Supply Code, 2005. The Corporation submitted that a consumer grievance redressal forum was available under Clause 7.10 of the Code, with a further appeal to the Ombudsman.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

CGRF and Ombudsman as alternate remedy for billing grievance

HOLDING

The Court declined to entertain the writ because Clause 7.10 of the 2005 Code provides a consumer grievance redressal forum and a further route to the Ombudsman; if the petitioner files his grievance before the forum within 15 days, it shall be disposed of within six weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER FIVE YEARS' MINIMUM CHARGES UNDER CLAUSES 4.35, 4.37, 4.38 AND 4.39 OF THE 2005 CODE WERE ERRONEOUSLY LEVIED

Merits of the Executive Engineer's demand left to the Clause 7.10 forum. ¶ 1